

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BRIAN BIFULCO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER BEKIM
XHUDO, SERGEANT GABRIEL ZAMBRANO,
SERGEANT BENNETT, LIEUTENANT GONZALEZ,
and POLICE OFFICERS JOHN DOES #1-10 (names and
number of whom are unknown at present), and other
unidentified members of the New York City Police
Department,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 17, 2015

Yours, etc.

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER BEKIM XHUDO, 25th Precinct, 120 East 119th Street, New York,
NY
SERGEANT GABRIEL ZAMBRANO, 25th Precinct, 120 East 119th Street, New York,
NY
SERGEANT BENNETT, 25th Precinct, 120 East 119th Street, New York, NY
LIEUTENANT GONZALEZ, 25th Precinct, 120 East 119th Street, New York, NY

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, BRIAN BIFULCO, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On or about November 23, 2013 at approximately 5:30 p.m., plaintiff Brian Bifulco, was unlawfully searched, falsely arrested and falsely imprisoned by the individually named defendant New York City police officers inside of a homeless shelter located at 2027 Lexington Avenue. Additionally, the defendant police officers negligently damages plaintiff's property, including but not limited to his cellular telephone. Plaintiff was deprived of his constitutional and common law rights when the individually named defendant police officers unlawfully searched, falsely arrested and imprisoned, and negligently inflicted emotional distress upon plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff BRIAN BIFULCO is a resident of the State of New York.
3. POLICE OFFICER BEKIM XHUDO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER BEKIM XHUDO, is and was at all times relevant herein, assigned to the 25th precinct.
5. POLICE OFFICER BEKIM XHUDO, is being sued in his individual and official capacities.
6. SERGEANT GABRIEL ZAMBRANO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. SERGEANT GABRIEL ZAMBRANO, is and was at all times relevant herein, assigned to the 25th precinct.
8. SERGEANT GABRIEL ZAMBRANO, is being sued in his individual and official capacities.
9. SERGEANT BENNETT, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. SERGEANT BENNETT, is and was at all times relevant herein, assigned to the 25th precinct.
11. SERGEANT BENNETT, is being sued in his individual and official capacities.
12. LIEUTENANT GONZALEZ is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. LIEUTENANT GONZALEZ, is and was at all times relevant herein, assigned to the 25th precinct.
14. LIEUTENANT GONZALEZ is being sued in his individual and official capacities.
15. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
16. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department (“NYPD”) as part of and in conjunction with its municipal function.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

22. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

23. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

24. THE CITY OF NEW YORK held a 50(H) hearing examination of the Plaintiff on March 4, 2014.

STATEMENT OF FACTS

25. On November 23, 2013, at approximately 5:00 p.m., plaintiff Brian Bifulco was lawfully sitting in a common area located inside of his residence located at 2027 Lexington Avenue, NY, NY, and preparing to eat dinner.

26. Shortly after plaintiff Bifulco sat at the table to begin eating, another resident of the building whom plaintiff did not know approached the vicinity of where plaintiff

was seated, stated to plaintiff “I should kick your ass,” and without provocation or warning began to physically attack plaintiff.

27. The individual that attacked plaintiff scratched plaintiff in the face and severely bruised plaintiff’s ribs.

28. Approximately 20-30 people were in the dining hall to witness the individual attack plaintiff.

29. Additionally, the attack of plaintiff by the individual was captured by surveillance video in the dining hall.

30. Employees working at the building were amongst the people that witnessed the assault, and they were able to intervene and stop the individual from continuing the attack on plaintiff.

31. Notably, as a result of the attack plaintiff sustained visible physical injuries to his face and body, while the attacker sustained no injuries, visible or otherwise.

32. After the attack, plaintiff went to the building’s shift supervisor’s office to discuss the incident, view the surveillance video of the incident, and request medical attention for his injuries.

33. A complaint was made on behalf of plaintiff about the incident and the individually named defendant police officers responded to the location of the incident at approximately 5:30 p.m.

34. The employees at the building, other residents of the building and plaintiff all provided the defendant police officers with consistent and detailed description regarding how plaintiff was attacked by the other individual without any provocation or any other legal justification.

35. Moreover, the defendant police officers viewed the video footage of the incident which corroborated plaintiff’s allegations that he was attacked by the other individual.

36. The defendant police officers were aware that plaintiff was the complainant and the victim of an assault and the officers observed the physical injuries plaintiff sustained from being assaulted by the individual.

37. In fact, the Omniform System- Complaint report generated by the defendant officers about the incident documents the fact that plaintiff was the victim and complainant in this incident and that plaintiff’s attacker was arrested under arrest ID M13702982 for attacking plaintiff.

38. Further, the defendant police officers observed that the attacker had no visible physical injuries to his body.

39. Based upon the objective facts known to the police officers, they reasonably believed that plaintiff was the victim of an unlawful physical assault by the individual and they lacked any objective basis to reasonably believe plaintiff committed any crime, broke any law, or assaulted the individual.

40. Nevertheless, the defendant police officers unlawfully searched and handcuffed plaintiff and falsely arrested and imprisoned him without legal justification or probable cause.

41. Moreover, the officers seized the video footage of the incident from the building to provide to the District Attorney's Office.

42. Thereafter, plaintiff was transported against his will by the defendant police officers to the 25th precinct and placed him into a holding cell where he was unlawfully detained for several hours.

43. Prior to being placed in the holding cell, plaintiff's property was removed from him by the Desk Sergeant at the 25th Precinct and held for safekeeping. However, the Desk Sergeant who negligently and/or recklessly dropped his cellular telephone and broke the glass face of the phone while he was holding the phone and lodging it into the precinct's records. The telephone cost plaintiff \$381.05 to replace.

44. Plaintiff suffers from serious and chronic medical conditions that require him to take medication each day in order to remain healthy. However, the defendant police officers prevented plaintiff from taking his usual course of medication that he was required to take daily during the entire time he was detained. As a direct and proximate cause of not being permitted access to his medication, plaintiff experienced physically uncomfortable withdrawal symptoms, including but not limited to severe nausea, throughout the duration of plaintiff's detention at the 25th Precinct and at Manhattan Central Booking.

45. Plaintiff was unlawfully fingerprinted and photographed by the defendant police officers at the 25th Precinct.

46. The defendants transported plaintiff from the 25th Precinct to New York County Central Booking on November 23, 2013, at approximately 8:00 p.m.

47. Defendants negligently or recklessly detained plaintiff in a holding cell at Central Booking with the individual that attacked him which caused plaintiff to feel as if he was in danger of being brutally attacked again by the individual and as a proximate cause of being placed in the holding cell with the man who attacked him earlier that day plaintiff suffered severe emotional distress for the duration of the time he was detained at Manhattan Central Booking and placed plaintiff in imminent fear of his safety.

48. On November 24, 2013, at approximately 5:00 pm, plaintiff was brought to an office whereat he met with an Assistant District attorney and one of the police officers that

initially arrested him and plaintiff recounted his version of events to the Assistant District Attorney.

49. Upon information and belief, the ADA also viewed the video of the incident which depicted plaintiff being attacked and assaulted, and confirmed that plaintiff was, in fact, the crime victim.

50. After the meeting with the Assistant District Attorney concluded, on November 24, 2013, approximately 24 hours after plaintiff was arrested, he was escorted to the front door of Central Booking and told he was free to leave because the Office of the District Attorney declined to prosecute plaintiff.

51. Upon information and belief, the individual that assaulted plaintiff was prosecuted by the Manhattan District Attorney's Office for physically attacking and injuring plaintiff.

52. The unlawful search, seizure, false arrest and false imprisonment of plaintiff was extremely stressful for plaintiff and caused plaintiff to suffer anxiety far above and beyond his psychological state prior to the incident.

53. Some of the police officer defendants observed the violations of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false imprisonment and false arrest of plaintiff.

54. The false arrest and false imprisonment of plaintiff by the individually named defendant police officers caused him to sustain severe physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The individually named police officer defendants while acting in concert and within the scope of their authority, damaged plaintiff's property after they unlawfully seized the property and caused plaintiff to be unlawfully searched, seized, falsely arrested and imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

57. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Search

63. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The illegal search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

65. Defendants lacked probable cause to search plaintiff.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Brian Bifulco, including but not limited to detaining plaintiff in the same holding cell of his attacker.. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

72. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligence

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. Defendants owed a duty of care to plaintiff.

77. The defendants breached their duty of care by mishandling plaintiff's cellular telephone and breaking the screen of the phone.

78. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages and injuries associated with replacing his telephone hereinbefore alleged.

79. All of the foregoing occurred without any fault or provocation by plaintiff.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Failure to Intervene

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other defendant police officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

89. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Brian Bifulco demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 17, 2015

By: /s/ Stuart E. Jacobs

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
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TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER BEKIM XHUDO, 25th Precinct, 120 East 119th Street, New York, NY
SERGEANT GABRIEL ZAMBRANO, 25th Precinct, 120 East 119th Street, New York, NY
SERGEANT BENNETT, 25th Precinct, 120 East 119th Street, New York, NY
LIEUTENANT GONZALEZ, 25th Precinct, 120 East 119th Street, New York, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
February 17, 2015

/s/ Stuart E. Jacobs
STUART E. JACOBS